

TENTATIVE RULING Thursday September 17, 2026

Department 35– Michael A. Dauber Judge

Tentative Rulings for Department S37, if posted, are on court's website (<https://www.sb-court.org/divisions/civil/civil-tentative-rulings>) by 3:00 p.m. and 7:00 p.m. on the court day before the hearing (in some cases, on a non-court day before the hearing). If no tentative ruling is posted by 3:00 p.m., please check again after 7:00 p.m.

Unless you wish to submit on the tentative ruling, you must appear for the hearing either in person, CourtCall (888-882-6878 or www.courtcall.com), or by ZOOM. Failure to appear is deemed a waiver of oral argument. If you wish to submit to the tentative, please call the Judicial Assistant at (909) 708-8707 in advance of the hearing. If all parties submit on a tentative ruling, the tentative ruling will become final. The tentative ruling may seek input on particular issues and direct appearance. If so directed, attendance at the hearing is mandatory. The party prevailing on a motion or other hearing shall serve written notice of the court's ruling unless all parties waive notice of the ruling.

ATTENTION: Since January 9, 2023, the court no longer provides an official Court Reporter to transcribe proceedings. Parties who wish to have a transcript must retain their own private reporter and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Please contact the Department if you need this form. Prior to the hearing, you can email the completed Stipulation to Department S37 at AGear@sb-court.org. Parties who do not retain their own reporter have waived the right to one.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

CASE NUMBER: CIVSB2535184 Ford Motor Company LLC v. Edward Sweatt, et al.

Motion: To Quash Service of Summons and Set Aside or Vacate Default

Movant: Defendant Edward W. Sweatt [Pro Per]

Respondent: Plaintiff Ford Motor Credit Company LLC

Background

On December 1, 2025, Plaintiff Ford Motor Credit Company LLC, filed a judicial form complaint against Edward W. Sweatt. Plaintiff alleges the following causes of action: (1) breach of contract; (2) recovery of possession of personal property; and (3) conversion. At issue is Plaintiff's claims related to Defendant's default on a contract that Plaintiff alleges gives Plaintiff the right to the return of the vehicle.

On February 2, 2026, Plaintiff filed a Proof of Service of Summons that states that Defendant was served by substituted service on January 10, 2026. The summons and complaint was served at 8204 Chantry Ave, Fontana, CA 92335, on “William Sweat Brother,” Male, age 36-40, dark brown skin tone, bald, brown eyes, 5’8” to 5’11”, 171 to 190 pounds. The POS is signed by a registered California process server under penalty of perjury. A Declaration re Diligence was attached, setting forth other prior attempts at service before substitute service. On March 26, 2026, the Court entered Defendant’s default. On May 27, 2026, the Court entered a judgment against Defendant in the amount of \$102,368.57. Now the Court decides the Defendant’s motion to quash service of the summons and complaint. Defendant also requests the Court set aside the default and default judgment. Defendant argues service was defective because Defendant lives alone and does not have a brother named William Sweat. Defendant submits a declaration in which he states he lives alone at 8204 Chantry Avenue in Fontana. He does not have a brother named William Sweat and has no knowledge of any person by that name residing at his address. He states that William is his middle name. He asserts that he did not receive the summons and complaint by mail. (Sweatt Decl. ¶¶ 4-7.) Defendant states that the first and only document he was personally served with and received is a declaration informing him to appear for a trial conference on June 15, 2026. (Sweatt Decl. ¶ 8.) But he does not state when this happened. He also states he was not avoiding service and his failure to respond was not due to negligence or intent to avoid the lawsuit. He had no prior notice of the action or that the default had been taken. (Sweatt Decl. ¶¶ 4-9.) Plaintiff opposes, recounting what is stated in the POS of Summons related to the Declaration of Diligence and substitute service. Plaintiff also discusses mailing the requests for entry of default and for default judgment. Plaintiff argues that the motion is untimely as a motion to quash and argues against granting relief from default. Plaintiff argues that Defendant was properly served. The only evidence submitted in support is on the declaration of Plaintiff’s counsel. Plaintiff also discusses running a Change of Address (COA) Request with the U.S. Post Office to confirm Defendant’s address. The address identified was 8204 Chantry Ave in Fontana. Defendant is not contesting the purported location of service or that the address where service occurred was not his. Defendant replies that the opposition does not establish that Defendant Sweatt was properly served with

the summons and complaint. Instead, Plaintiff asks the Court to presume valid service from the POS of Summons. Defendant again argues that the service stated did not occur.

Analysis

Legal Standard

The service of summons is the process by which the court acquires jurisdiction over a defendant in a civil action. Without substantial compliance with the statutory requirements for service, personal jurisdiction is not conferred even if the defendant has notice of the litigation. (*MJS Enterprises Inc. v. Superior Court* (1984) 153 Cal.App.3d 555, 557.) A defendant on or before the last day to plead may serve and file a notice of motion to quash service of summons on the ground that the court lacks jurisdiction. (Code Civ. Proc., § 418.10, subd. (a)(1).) The Court may extend this deadline for “good cause.” (*Ibid.*) When service is challenged by a motion to quash, it is the plaintiff’s burden to prove by preponderance of the evidence the validity of the service and the court’s jurisdiction over the defendant by proving the facts requisite to an effective service. (*Summers v. McClanahan* (2006) 140 Cal.App.4th 403, 413. In general, the filing of a proof of service creates a rebuttable presumption that service was proper. But the presumption arises only if the proof of service complies with applicable statutory requirements. (*Dill v. Berquist Construction Co.* (1994) 24 Cal.App.4th 1426, 1441-1442.) Evidence Code section 647 provides: “The return of a process server registered pursuant to Chapter 16 (commencing with Section 22350) of Division 8 of the Business and Professions Code upon process or notice establishes a presumption, affecting the burden of producing evidence, of the facts stated in the return.” The effect of such a rebuttable presumption is “to require the trier of fact to assume the existence of the presumed fact unless and until evidence is introduced which would support a finding of its non-existence, in which case the trier of fact shall determine the existence or non-existence of the presumed fact from the evidence and without regard to the presumption.” (Evid. Code, § 604.) In addition, Code of Civil Procedure section 473, subdivision (d), provides in relevant part: “The court ... may, on motion of either party after notice to the

other party, set aside any void judgment or order.” A void judgment for lack of proper service may be challenged at any time. (*California Capital Ins. Co. v. Hoehn* (2024) 17 Cal.5th 207, 223-226.) Given the Defendant argues he did not receive actual notice in time to defend, the Court will exercise its discretion to hear the motion to quash service.

With respect to an individual, proper service of the summons and complaint may be effected by personal service, i.e., hand delivering a copy of the summons and complaint (Code Civ. Proc., § 415.10) or where personal service cannot be effected on the individual with reasonable diligence, by substitute service. (Code Civ. Proc., § 415.20, subd. (b).) Code of Civil Procedure section 415.20, subdivision (b), provides for substitute service, stating:

(b) If a copy of the summons and complaint cannot with reasonable diligence be personally delivered to the person to be served, as specified in Section 416.60, 416.70, 416.80, or 416.90, a summons may be served by leaving a copy of the summons and complaint at the person’s dwelling house, usual place of abode, usual place of business, or usual mailing address other than a United States Postal Service post office box, in the presence of a competent member of the household or a person apparently in charge of their office, place of business, or usual mailing address other than a United States Postal Service post office box, at least 18 years of age, who shall be informed of the contents thereof, and by thereafter mailing a copy of the summons and of the complaint by first-class mail, postage prepaid to the person to be served at the place where a copy of the summons and complaint were left. Service of a summons in this manner is deemed complete on the 10th day after the mailing.

Code of Civil Procedure section 417.10, subdivision (a), provides that proof that a summons was served on a person within this state shall be made: “If served under Section 415.10, 415.20, or 415.30, by the affidavit of the person making the service showing the time, place, and manner of service and facts showing that the service was made in accordance with this chapter. The affidavit shall recite or in other manner show the name of the person to whom a copy of the summons and of the complaint were delivered, and, if appropriate, the person’s title or the capacity in which the person is served, and that the notice required by Section 412.30 appeared on the copy of the summons served, if in fact it did appear.”

The Defendant has presented sufficient evidence to overcome the presumption of valid service, especially considering the policy that supports having cases decided on their merits. Here, Defendant states

under penalty of perjury that he does not have a brother named William Sweat, no person named William Sweat resides at that address, Defendant lives alone, and no substitute service occurred upon anyone at the Chantry Avenue address on January 10, 2026. (Sweatt Decl. ¶¶ 4-7.) With this evidence, Plaintiff cannot continue to rely on the POS of Summons in support for proper service and Plaintiff's counsel's declaration also is insufficient for Plaintiff to meet its burden of demonstrating proper substitute service. Also Defendant points out in reply, "[s]ervice must be made upon a person whose 'relationship with the person to be served makes it more likely than not that they will deliver process to the named party.' [Citation.]" (*Bein v. Brechtel-Jochim Group, Inc.* (1992) 6 Cal.App.4th 1387, 1393-1394.) With evidence that Defendant does not have a brother "William Sweat" and denying service occurred on this date, Plaintiff's opposition does not provide sufficient evidence to demonstrate the requirements of section 415.20 for substitute service are met. Defendant is correct that Plaintiff cannot speculate about who the person purportedly served is. Defendant also states that the physical description does not match his, asserting he had previously stated this. But no such statement is made in Defendant's declaration. This argument on reply appears to be in response to Plaintiff's arguments that random people do not accept service and the facts indicate someone knows Defendant's middle name. Plaintiff's arguments about sending demand letters and other notices, even if true, actual notice of the action alone is not a substitute for proper service and is not sufficient to confer jurisdiction. (*American Express Centurion Bank v. Zara* (2011) 199 Cal.App.4th 383, 392.) Therefore, Defendant's receipt of the June 15, 2026 TSC is without consequence. In addition, the fact Defendant states he appeared on June 15 and discovered the lawsuit is only relevant to show when Defendant first learned of the default and default judgment. No appearances were made that day because the June 15, 2026 hearing had been vacated on entry of the default judgment and there are no minutes from that hearing. Finally, contrary to Plaintiff's argument, where Defendant is claiming the default and default judgment should be set aside as void under section 473, subdivision (d), there is no requirement that Defendant include a proposed pleading.

Court Findings and Orders

The Court finds that Defendant Sweatt submitted sufficient evidence to rebut the presumption of proper service and Plaintiff failed to present sufficient evidence to establish substitute[s] service was properly effected as stated on the Proof of Service of Summons filed with the Court on February 2, 2026.

The Court **GRANTS** Defendant Edward W. Sweatt's motion to quash service and to set aside the Default and Default Judgment.

The Default entered on March 26, 2026 is **VACATED**.

The Judgment entered on May 27, 2026 for \$ 102, 368.57 is **VACATED**

Plaintiff is to properly serve the Summons and Complaint as specified in the California Code of Civil Procedure

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Michael A. Dauber, Judge San Bernardino County Superior Court

